

Court No. - 3
Case :- WRIT - C No. - 55446 of 2014
Petitioner :- M/S Saini Alloys Pvt. Ltd. Thru' M.D.
Respondent :- U.P. Power Corporation Ltd. & 4 Others
Counsel for Petitioner :- Ranjit Saxena
Counsel for Respondent :- C.S.C.,A.S.G.I./2014/10773,Nripendra Mishra

Hon'ble Rajiv Sharma,J.
Hon'ble Dinesh Gupta,J.

Connect and list with Writ -C No. 51844 of 2009 and 36105 of 2014.

Heard learned counsel for the petitioner, Mr. Uma Shanker Singh, learned counsel for the respondent no. 5, learned Standing for respondent No.4 and Mr. Nripendra Mishra, counsel for the respondent Nos.1, 2 and 3.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 24.6.2014 issued by the respondent No. 3, for additional security.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/S Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioner also submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above, it is provided, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 16.10.2014
Ajit/-